

25PSCV02837 25PSCV02837

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Case Number: 25PSCV02837 Hearing Date: August 5, 2026 Dept: O

Tentative Ruling

(1)

CROSS-DEFENDANT SVO ENTERPRISE, LLC'S NOTICE OF MOTION AND MOTION TO COMPEL PLAINTIFF ASUNCION CRUZ MARTINEZ'S RESPONSES TO REQUESTS FOR PRODUCTION OF DOCUMENTS (SET 1) WITHOUT OBJECTION; REQUEST FOR SANCTIONS is MOOT/GRANTED re: sanctions in a reduced amount.

(2)

CROSS-DEFENDANT SVO ENTERPRISE, LLC'S NOTICE OF MOTION AND MOTION FOR ORDER ESTABLISHING PLAINTIFF ASUNCION CRUZ MARTINEZ'S ADMISSIONS OR, ALTERNATIVELY, TO COMPEL PLAINTIFF'S RESPONSES TO REQUESTS FOR ADMISSION (SET 1) WITHOUT OBJECTION; REQUEST FOR SANCTIONS is MOOT/ GRANTED re: sanctions in a reduced amount.

(3)

CROSS-DEFENDANT SVO ENTERPRISE, LLC'S NOTICE OF MOTION AND MOTION TO COMPEL PLAINTIFF ASUNCION CRUZ MARTINEZ'S RESPONSES TO SPECIAL INTERROGATORIES (SET 1) WITHOUT OBJECTION; REQUEST FOR SANCTIONS is MOOT/ GRANTED re: sanctions in a reduced amount.

(4)

CROSS-DEFENDANT SVO ENTERPRISE, LLC'S NOTICE OF MOTION AND MOTION TO COMPEL PLAINTIFF ASUNCION CRUZ MARTINEZ'S RESPONSES TO FORM INTERROGATORIES (SET 1) WITHOUT OBJECTION; REQUEST FOR SANCTIONS is MOOT/ GRANTED re: sanctions in a reduced amount.

The

motions are moot as after the filing of the motions, on July 2, 2026, Plaintiff served responses and thereafter on 7, 2026 Plaintiff served a verification for the responses. As for sanctions, they are granted in a reduced, total amount of \$500.

Background

This

is a negligence case wherein the plaintiff alleges that on August 30, 2023, while plaintiff was handling packages, he fell through an opening in the floor causing him to fall down one story.

On

August 5, 2025, Plaintiff Asuncion Cruz Martinez filed suit against Defendant Gateway San Gabriel, Inc. ("Gateway") for (1) Negligence and Premises Liability.

On September 29, 2025, Plaintiff filed an amendment to the complaint naming RREEF CPIF San Gabriel Properties, LLC ("RREEF") as Doe 1.

On

October 29, 2025, RREEF filed its answer and a general denial and that same day filed a cross-complaint (CC) against SVO Enterprises, LLC ("SVO) for:

1)

Equitable Indemnity

2)

Total Indemnity

3)

Contribution

4)

Express Indemnity

5)

Breach Of Written Contract

6)

Declaratory Relief: Duty To

Defend

7)

Declaratory Relief: Duty To

Indemnify

8)

Declaratory Relief

Contractual

Duties

On

December 4, 2025, Plaintiff dismissed Gateway.

On April 29, 2026, the parties attended an
IDC.

On April 30, 2026, the instant motions were
filed.

On July 23, 2026, oppositions were filed.

On July 29, 2026, a reply was filed.

Discussion

The court's ruling will be brief as there is
no (probing) legal issue to adjudicate but a seeming disagreement between the
attorneys. SVO agrees that its motions are moot only insofar as they sought
an order compelling Plaintiff's response to the Discovery since the discovery
was provided but not moot as to sanctions. After a review of the parties'
arguments, the court finds neither party has acted with the requisite level of
professionalism and courtesy to warrant sanctions.

The

timeline, as gathered by the moving papers and not otherwise disputed by Plaintiff, is that on January 19, 2026, SVO served its Discovery to Plaintiff by e-mail to the only counsel identified by Plaintiff (Plaintiff's responses were therefore due by February 20, 2026); on February 26, 2026, SVO sends follow-up e-mail to Plaintiff's counsel in the same e-mail chain concerning whether Plaintiff will respond to the Discovery;[1] Plaintiff's counsel responds the same day stating that he "did not get" the Discovery and that he had not agreed to accept service by e-mail, and that SVO would have to re-serve the Discovery to a "handling" attorney;[2] SVO maintained that pursuant to Cal. Rule of Court 2.251(c)(3) service was proper.

Plaintiff

maintains that SVO's electronic transmission had not been received and that it did not constitute valid service under the circumstances "because the discovery was not directed to the attorney or recipients identified for discovery-related communications." (Opp. p. 3; see also opp. 4; see also Aghabala Decl., p. 2 ["After receiving the February 26, 2026 email I immediately responded to SVO's counsel informing him of our Firm's policy that we only agree to electronic service if the handling attorney and his or her assistants are included in the email. I also advised him that I had not received his January 19, 2026 email, advised him to serve the handling attorney and his assistant and stated that "Once the handling attorney and his assistants are properly served, we will gladly respond to the discovery and cooperate with you firm in every way."]; see also Reply p. 3:2-3 ["Plaintiff completely fails to show that SVO's e-mail service of its Discovery was improper justifying his refusal to respond."].)

For emphasis then, Plaintiff is not

disputing that electronic service was permissible but that the right attorney and his/her assistants were not included to constitute proper electronic service.[3]

But Plaintiff's attorney of record was the only counsel for Plaintiff known to SVO. In

fact, it appears Counsel Aghabala is the handling attorney as his declaration is provided in support of the opposition and furthermore the email exchanges between the attorneys does not seem to provide the name of a different handling attorney.

That

leads to the issue of sanctions. The issue was minor/technical, yet it took until well after the filing of the motions for Plaintiff to respond. As set forth above and in the moving papers, Plaintiff's refusal to accept SVO's service was not grounded in law. (See Reply p. 5, citing *Doe v. United State Swimming, Inc.* (2011) 200 Cal.App.4th 1424, 1434 ["the phrase 'substantial justification' has been understood to mean that a justification is clearly reasonable because it is well-grounded in both law and fact."]; see also *Golf & Tennis Pro Shop, Inc. v. Sup.Ct.* (2022) 84 Cal.App.5th 127, 139.) In light of these facts, Plaintiff has presented no "substantial justification" or "other circumstances" that make the imposition of sanctions unjust.

That said, exercising its discretion and considering the totality of the circumstances (e.g., Plaintiff's participation in the IDC), the court reduces the total sanction award to a total of \$500 for all motions.[4]

Conclusion

Based

on the foregoing, the motions are moot as to compelling responses/granted in a reduced amount as to sanctions.

[1] Plaintiff's counsel

maintains that his February 26, 2026 email was in response to defense counsel's February 26, 2026 email in which he had forwarded his previous email.

[2] As noted by SVO, it is incumbent upon Plaintiff's counsel to identify who should receive service of pleadings and discovery. Cal. Rules of Court Rule 2.251(c)(4) (requiring parties and counsel to provide all other parties with the e-mail address for service of process).

[3] Though the email

exchanged dated 2/27/26 provided as Exhibit 3 appears to illustrate that Plaintiff's counsel objected to electronic service altogether by citing CRC Rule 2.251. But if Plaintiff is stating that service about the "right" handling attorney via email is permissible, then it is unclear how electronic service was not expressly consented to. Plus, as noted in reply, ironically, responses to discovery were served via email.

[4]

SVO does not seek excessive hours per motion, but the hourly rate of \$500 is rather excessive for this community.